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UNITED STATES DISTRICT COURT

DISTRICT OF OREGON

PORTLAND DIVISION

TYLER ALLEN LOFALL, Plaintiff, v. CLACKAMAS COUNTY, et al., Defendants.	Case No. 3:24-cv-00839-SB COUNTY DEFENDANTS' MOTION TO DISMISS FIRST AND SECOND AMENDED COMPLAINTS

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I. LR 7-1 CERTIFICATION

Undersigned counsel, representing defendants Clackamas County, Clackamas County Sheriff's Office, and Clackamas County Jail certifies that Plaintiff Tyler Lofall willfully refused to confer by phone, and instead insisted on communicating by email. After multiple emails exchanged with Plaintiff Lofall on April 29, 30, and May 1, 2025, in a good faith effort by the undersigned counsel to resolve the dispute, the parties were unable to do so.

II. MOTION TO DISMISS

Defendants Clackamas County, Clackamas County Sheriff's Office, and Clackamas County Jail (hereafter "County Defendants"), by and through counsel, pursuant to Fed. R. Civ. P. 12(b)(1), Fed. R. Civ. P. 12(b)(6), *Am. Int'l Underwriters (Philippines), Inc. v. Cont'l Ins. Co.*, 843 F.2d 1253 (9th Cir. 1988); and Fed. R. Civ. P. 41(b), move the Court for an order dismissing Plaintiff's First Amended Complaint ("FAC") and Second Amended Complaint ("SAC") filed in the above-captioned action on the following grounds: (1) the amended complaints are repetitive to Plaintiff's Complaint previously filed in Oregon State Court and constitutes an improper attempt to remove his state court action; (2) the amended complaints violate the statute of limitations; (3) Plaintiff lacked authority to file his amended complaints; (4) Section 1983 claims against the Clackamas County Sheriff's Office are not raised against a proper entity; (5) Plaintiff failed to properly state a claim upon which relief can be granted under the Due Process Clause of the 14th Amendment; (6) Plaintiff failed to properly state a claim upon which relief can be granted for his alleged Section 1983 Claims directed at County

Defendants; and (7) Plaintiff failed to plead compliance with the Oregon Tort Claims Act.[1]

This Motion is based on the following Legal Memorandum, supporting Declaration of Shawn Lillegren ("Lillegren Decl."), and the pleadings and papers on file in this action.

III. LEGAL MEMORANDUM

A. Introduction

Plaintiff commenced this action in an effort to shop for a new forum. Approximately three years ago, Plaintiff initiated a substantially similar state court action against defendants. As the state court action proceeded, Defendant Clackamas County, Defendant Clackamas County Jail, Defendant Clackamas County Police Department, and Defendants Clackamas County John Doe Police Officers No. 1 and No. 2 were dismissed for want of prosecution. Rather than proceeding to his jury trial scheduled for May 21, 2024, against West Linn Defendants only, Plaintiff filed a notice to remove his action to this Court on May 18, 2024. Case No. 3:24-cv-00838-SB, ECF No. 2-1. Before this Court properly remanded because a plaintiff has no authority to remove a state court action, Plaintiff also filed a separate new action in this Court. Case No. 3:24-cv-00838-SB, ECF No. 6; ECF No. 2. Now that Plaintiff has filed his SAC, Plaintiff has revealed that his action concerns the same issues raised previously in his state court action. ECF No. 17-1. Plaintiff's underlying dispute generally concerns the

[1] County Defendants' Motion to Dismiss does not address Plaintiff's First, Second, Third, Fourth, and Twelfth causes of actions, as alleged in Plaintiff's SAC, because those claims are not directed at Clackamas Defendants; rather, these claims appear to be directed at West Linn Defendants and Defendant Deputy District Attorney Portlock, who is represented by the Oregon Department of Justice.

same parties and claims regarding alleged incidents between March 4 and 6, 2022; Plaintiff's arrest on March 6, 2022; Plaintiff's incarceration at the Clackamas County Jail between March 6 and July 8, 2022; and Plaintiff's criminal prosecution that resulted in a dismissal of all charges. ECF No. 17-1, pp. 21-40.

There is simply no basis for Plaintiff's attempt to re-litigate his claims here after having already chosen his forum for this dispute.

Even if this Court decides Plaintiff may have a second opportunity to litigate his claims in this Court, the SAC violates the statute of limitations, was filed without authority, and fails to state a claim upon which relief can be granted.

B. <u>Procedural Posture</u>

1. State Court

Initially, on November 18, 2022, plaintiff commenced his action in Oregon state court, the Clackamas County Circuit Court. Lillegren Decl., Ex. 1; Ex. 4. The only defendants to appear were West Linn Police Department and West Linn Police Department Officers Dana Gunnerson and Caitlin Blyth. *Id.*, Ex. 5. The following defendants were dismissed for want of prosecution: Clackamas County Police Department, Clackamas County John Doe Police Officer No. 1, Clackamas County John Doe Police Officer No. 2, County of Clackamas, Clackamas County Jail, and Rebecca Portlock. *Id.*, Ex. 2; Ex. 3.

Plaintiff filed amended complaints. *Id.*, Ex. 6; Ex. 7. West Linn Defendants filed a motion to dismiss and motion for summary judgment. *Id.*, Ex. 8; Ex. 9. A jury trial was scheduled for May 21, 2024. *Id.,* Ex. 10. On May 20, 2024, Plaintiff served West Linn Defendants with a Notice of Removal to this Court, which caused the jury trial to be

canceled. *Id.*, Ex. 11. On June 4, 2024, this Court remanded the case back to the Clackamas County Circuit Court. *Id.*, Ex. 12.

On February 5, 2025, the Clackamas County Circuit Court scheduled a jury trial for August 26, 2025. *Id.*, Ex. 13. Eight days later, Plaintiff filed a motion to dismiss his case without prejudice because he wanted to pursue his claims in federal court. *Id.*, Ex. 14. On March 6, 2025, the Clackamas County Circuit Court entered a General Judgment of Dismissal, which dismissed Plaintiff's claims without prejudice. *Id.*, Ex. 15.

2. U.S. District Court of Oregon

a. *Lofall v. County of Clackamas et. al.*, Case No. 3:24-cv-00838-SB

On May 23, 2024, Plaintiff filed a Notice of Removal in this Court to remove his case described above, Clackamas County Circuit Court Case No. 22CV39627. U.S. District Court of Oregon, Case No. 3:24-cv-00838-SB, ECF No. 2-1. On June 4, 2024, this Court remanded the case to the Clackamas County Circuit Court. U.S. District Court of Oregon, Case No. 3:24-cv-00838-SB, ECF No. 6.

b. *Lofall v. Clackamas County et. al.*, Case No. 3:24-cv-00839-SB

On May 23, 2024, the same day Plaintiff filed his Notice of Removal, Plaintiff commenced this action by filing his original complaint. ECF No. 2. According to that complaint, Plaintiff's claims related to an alleged arrest on May 24, 2022, which concerned law enforcement officers' alleged actions concerning the theft of a vehicle and Plaintiff's property. ECF No. 2, pp. 3-4. Plaintiff's claims for relief included a claim for negligence, deprivation of property with our Due Process, "Civil Theft or Conversion," "Violation of Civil Rights," and Intentional Infliction of Emotional Distress. *Id*. at p. 4. Plaintiff's complaint identified the following defendants: State of Oregon,

County of Clackamas, Clackamas County Police Department, John Doe Officer 1, and John Doe Officer 2.

On August 7, 2024, the Court adopted Magistrate Judge Beckerman's Findings and Recommendations (ECF No. 9) and dismissed the complaint *sua sponte*; dismissing claims against the State of Oregon with prejudice due to Eleventh Amendment immunity, and dismissing claims against the remaining Defendants without prejudice for failing to state a claim for relief. ECF No. 12. The Court's Order authorized Plaintiff to amend his original Complaint concerning claims against Clackamas County, the Clackamas County Police Department, and John Doe Officers 1 and 2 within 30 days. ECF No. 12.

Plaintiff then filed a FAC on September 9, 2024. ECF No. 13. According to the FAC, Plaintiff's claims relate to alleged "property destruction" by a person named "Macy" between March 4 and 6, 2022, his arrest, his conditions of confinement and medical care while detained on related criminal charges, his criminal prosecution, and the timing of his release from jail on July 8, 2022. ECF No. 13 at pp. 18-25, 34. The FAC purports to state nine causes of action, including (1) unlawful detection, (2) malicious prosecution, (3) conspiracy to deprive civil rights, (4) failure to prevent harm, (5) cruel and unusual punishment, (6) false imprisonment, (7) deliberate indifference, (8) intentional interference with contractual relations, and (9) a *Monell* claim for failure to train and official custom of deliberate indifference. *Id*. at pp. 32-47. Regarding his claim surrounding medical treatment received at Clackamas County Jail, Plaintiff alleges that his requests for contact lenses and proper eyewear for his "legal blindness" were denied. *Id*. at p. 30. The FAC identified the following defendants: Clackamas County,

West Linn Police Department, West Linn Police Department Officer Dana Gunnarson, West Linn Police Department Officer Catlin Blyth, Clackamas County Sheriff's Department, Clackamas County Jail, Deputy District Attorney Rebecca Portlock, John Doe 1, and John Doe 2. *Id*. at pp. 11-15.

On September 12, 2024, Plaintiff filed a Notice to the Court, in pertinent part, requesting the tolling of the statute of limitations due to "significant delays caused by both state and federal (court) procedural barriers. As well as Plaintiff's legal blindness and the lack of ADA accommodations." ECF No. 14 at p. 2. Moreover, Plaintiff requested the consolidation of claims from his previously dismissed (unidentified) cases. *Id*.

On September 24, 2024, the Court ordered Plaintiff not to further amend his complaint without leave of the Court. ECF No. 16.

On October 9, 2024, Plaintiff filed a Motion for Leave to File Second Amended Compliant that included the SAC. ECF No. 17. Plaintiff sought to include additional evidence, "inadvertently omitted from the First Complaint," regarding his legal blindness that impacts his ability to represent himself and review documents, and to correct factual claims and constitutional provisions. *Id*. at p. 2. Plaintiff also requested his SAC to relate back to the date of his original filing in May 2024, pursuant to Fed. R. Civ. P. 15(c).

The SAC generally concerns alleged incidents between March 4 and 6, 2022, Plaintiff's arrest on March 6, 2022, his incarceration at the Clackamas County Jail between March 6 and July 8, 2022, and his criminal prosecution that resulted in a dismissal of all criminal charges. ECF No. 17-1; pp. 21-36.

The SAC purports to bring eleven claims pursuant to 42 U.S.C. § 1983 (Fourth Amendment – Unlawful Arrest, Fourth Amendment – Malicious Prosecution, Fourth Amendment – Conspiracy, Fourteenth Amendment – Failure to Protect, Fourteenth Amendment – Cruel and Unusual Punishment, Fourteenth Amendment – False Imprisonment, Fourteenth Amendment – Deliberate Indifference to Medical Needs, *Monell* Claim for Failure to Train and Supervise, Seventh Amendment – Denial of Right to Civil Jury Trial, Fifth Amendment – Violation of Due Process, Sixth Amendment – Right to Counsel and Fair Trial) and a single tort claim for intentional interference with contractual relations. *Id*. at pp. 48-71.

On February 3, 2025, the Court issued a Notice of Lawsuit and Request for Waiver of Service to Clackamas County Sheriff's Office, Clackamas County, Deputy District Attorney Rebecca Portlock, Clackamas County Jail, Unknown Persons 1 and 2, West Linn Police Department, Officer Dana Gunnarson, and Officer Catlin Blyth. ECF Nos. 19 and 20. The County Defendants waived service for Clackamas County, the Clackamas County Sheriff's Office, and the Clackamas County Jail. ECF No. 24.

C. <u>Standards</u>

1. Rule 12(b)(1)

A motion to dismiss under Rule 12(b)(1) is appropriate when a complaint lacks subject matter jurisdiction. *Chandler v. State Farm Mut. Auto. Ins. Co.*, 598 F.3d 1115, 1122 (9th Cir. 2010). Rule 12(b)(1) motions to dismiss concerning subject matter jurisdiction may be challenged either facially or factually. *Safe Air for Everyone v. Meyer*, 373 F.3d 1035, 1039 (9th Cir. 2004). A facial challenge is limited to a review of

the allegations in a complaint, while a factual challenge is supported with extrinsic evidence. *Id*.

Jurisdiction "must be rejected if there is any doubt as to the right of removal in the first instance." *Duncan v. Stuetzle*, 76 F.3d 1480, 1485 (9th Cir. 1996).

2. Rule 12(b)(6)

A motion to dismiss under Rule 12(b)(6) is appropriate when a plaintiff has "failed to state a claim upon which relief can be granted." Fed. R. Civ. P. 12(b)(6). Generally, complaints must be pled with specificity. *See Bell Atlantic v. Twombly*, 550 U.S. 544, 555 (2007); *Iqbal v. Ashcroft*, 556 U.S. 662, 678 (2009). Although the Supreme Court in *Iqbal* and *Twombly* articulated a more stringent pleading requirement, the Ninth Circuit continues to apply the "benefit of liberal construction" to pleadings filed *pro se*. *Rishor v. Ferguson*, 822 F.3d 482, 495 (9th Cir. 2016); *Butler v. Long*, 752 F.3d 1177, 1180 (9th Cir. 2014). That is, when the plaintiff is *pro se*, the documents filed must be liberally construed. *Erickson v. Pardus*, 551 U.S. 89, 94 (2007); *Roy v. Lampert*, 465 F.3d 964, 970 (9th Cir. 2006) (the *pro se* status of a plaintiff "informs and colors the lens through which we view the filings.").

If the facts alleged in a complaint show that a claim is barred by the statute of limitations, a party may bring a Rule 12(b)(6) motion to dismiss for failure to state a claim. *Jablon v. Dean Witter & Co.*, 614 F.2d 677, 682 (9th Cir. 1980). To dismiss the complaint as untimely, it must appear beyond doubt that the plaintiff cannot establish the timeliness of a claim. *Supermail Cargo, Inc. v. United States*, 68 F.3d 1204, 1207 (9th Cir. 1995).

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3. Dismissal of Repetitive Federal Lawsuits

A plaintiff is not permitted to remove its case to federal court. *Am. Int'l Underwriters (Philippines), Inc. v. Cont'l Ins. Co. ("AIU")*, 843 F.2d 1253, 1260 (9th Cir. 1988) ("The right to remove a state court case to federal court is clearly limited to defendants."); *Oregon Egg Producers v. Andrew*, 458 F.2d 382, 383 (9th Cir. 1972) ("A plaintiff who commences his action in a state court cannot effectuate removal to a federal court even if he could have originated the action in a federal court and even if a counterclaim is thereafter filed that states a claim cognizable in a federal court."). 28 U.S.C. § 1441(a) limits the authority to remove a case from state to federal court to a defendant or defendants: "Except as otherwise expressly provided by Act of Congress, any civil action brought in a State court of which the district courts of the United States have original jurisdiction, may be removed by the defendant or the defendants, to the district court of the United States...."

A plaintiff cannot achieve the same result of removal by dismissing its state court case without prejudice and then refiling the case in federal court. *AIU*, 843 F.2d at 1260. In *AIU*, the plaintiff first filed an action in state court, then, after two-and-a-half years of litigation, the plaintiff filed suit in federal district court "alleging the same facts and claims." *Id*. at 1255. The district court granted and the Ninth Circuit affirmed the decision to grant the defendant's motion to dismiss for "the avoidance of duplicative litigation." *Id*. at 1256.

A plaintiff has no right to bring multiple cases based on the same facts. *Reyes v. Bolles*, No. 2:19-cv-02108-AC, 2020 WL 129090 at *2 (D. Or. Jan. 10, 2020). Nor does

an *in forma pauperis* plaintiff have a right to bring repetitive or duplicative claims. *Id*. (citing *Hernandez v. Denton*, 861 F.2d 1421, 1425 (9th Cir. 1988)).

D. Argument

1. This Repetitive Lawsuit Should be Dismissed

A reading of the Third Amended Complaint filed in state court and the amended complaints filed in this case demonstrates that they are substantially similar and that this action is a "repetitive lawsuit." Ex. 7; ECF No. 13; ECF No. 17-1, pp. 21-36. The parties, claims, and factual allegations all relate to Plaintiff's general allegation that he was wrongfully arrested on March 6, 2022, incarcerated at the Clackamas County Jail between March 6 and July 8, 2022, and criminally prosecuted until his criminal matter was ultimately dismissed on July 13, 2022. *Id*.

Plaintiff elected to proceed against Defendants in Oregon state court, and Plaintiff "should be bound by [his] choice." *AIU*, 843 F.2d at 1260. The Court should dismiss under *AIU* because Plaintiff cannot undermine the limited removal authority in Section 1441 by now filing a "repetitive lawsuit."

2. Amended Complaints Violate the Statute of Limitations

Plaintiff's amended complaints violated the two-year statute of limitations and should be dismissed.

a. Length of Time

In an action brought pursuant to 42 U.S.C. § 1983, "federal courts look to the law of the state in which the cause of action arose and apply the state law of limitations governing [the] analogous cause of action." *Pouncil v. Tilton*, 704 F.3d 568, 573 (9th Cir. 2012). Section 1983 claims are best characterized as personal injury actions.

Wilson v. Garcia, 471 U.S. 261, 276 (1985). Accordingly, "[the] forum state's statute of limitations for personal injury torts determines the statute of limitations for a [§] 1983 claim." *Aplin v. Or. Dep't of Corr.*, No. 6:17-cv-01222-MO, 2019 WL 1048837, at *2 (D. Or. Mar. 5, 2019). Or. Rev. Stat. § 12.110(1) provides a two-year statute of limitations period for personal injury torts. *Camarata v. Portland Cmty. Coll.*, No. 3:19-cv-00738-HZ, 2019 WL 4723769, at *3 (D. Or. Sept. 26, 2019). State law tort claims against a public body or employee of a public body must be commenced no later than two years after the alleged loss or injury. Or. Rev. Stat. § 30.275(9). Accordingly, Plaintiff's claims against County Defendants are subject to a two-year statute of limitations.

b. When Time Begins to Run

For a Section 1983 claim, federal law determines when the statute begins to run. *Pouncil*, 704 F.3d at 573. The statute of limitations begins to run when plaintiff's claim accrues. *Id*. "[A]ccrual occurs when the plaintiff has a complete and present cause of action and can file suit and obtain relief." *Id*. at 573-74. "A federal claim accrues when the plaintiff knows or has reason to know of the injury that is the basis of the action." *Id*. at 574.

Oregon law provides that "a tort claim accrues when the plaintiff knows or reasonably should know that an injury occurred, the injury harmed one or more of the plaintiff's legally protected interests, and the defendant is the responsible party." *Cole v. Sunnyside Marketplace, LLC*, 212 Or. App. 509 (2007) (internal quotation marks omitted).

Federal Rule of Civil Procedure 3 provides that "[a] civil action is commenced by filing a complaint with the court."

c. Plaintiff's Claims in his Amended Complaints are Time-Barred

Plaintiff commenced this action by filing his original complaint on May 23, 2024. ECF No. 2. According to that complaint, Plaintiff's claims related to an alleged arrest by John Doe Officer 1 and John Doe Officer 2 on May 24, 2022, which concerned law enforcement officers' alleged actions concerning the theft of a vehicle and plaintiff's property. ECF No. 2, p. 3-4.

In this Court's preliminary screening of this *in forma pauperis* complaint, the Court properly dismissed Plaintiff's original complaint with prejudice as to the State of Oregon and without prejudice as to the remaining Defendants. ECF No. 12, p. 2.

Plaintiff's FAC filed on September 9, 2024, was comprised of unrelated factual and legal allegations regarding alleged "property destruction" by "Macy" between March 4 and 6, 2022, his arrest, his conditions of confinement and medical care while detained on related criminal charges, his criminal prosecution, and the timing of his release from jail on July 8, 2022. ECF No. 13 at pp. 18-25, 34.

Because Plaintiff filed his FAC more than two years after the alleged occurrences at issue, the FAC violated the statute of limitations. For the same reasons, Plaintiff's subsequently filed SAC also violates the statute of limitations. ECF No. 17.

d. Relation Back Doctrine Not Applicable

The relation back doctrine offers no support to Plaintiff. When "the limitations period derives from state law, [Fed. R. Civ. P.] 15(c)(1) requires us to consider both federal and state law and employ whichever affords the 'more permissive' relation back standard." *Butler v. Nat'l Cmty. Renaissance of Cal.*, 766 F.3d 1191, 1201 (9th Cir. 2014). Rule 15(c) provides:

> "(1) the basic claim must have arisen out of the conduct set forth in the original pleading; (2) the party to be brought in must have received such notice that it will not be prejudiced in maintaining its defense; (3) that party must or should have known that, but for a mistake concerning identity, the action would have been brought against it; and (4) the second and third requirements must have been fulfilled within the prescribed limitations period."

Schiavone v. Fortune, 477 U.S. 21, 29 (1986). In this case, Plaintiff does not meet the first requirement because the claims raised in Plaintiff's FAC and SAC did not arise from conduct set forth in the original complaint. Plaintiff's original complaint concerns an arrest of him in a parking lot on May 24, 2022, after he had been released from jail. Compl. ¶¶ 9-10; ECF No. 2. Plaintiff's FAC and SAC concern his arrest in March 2022 and his subsequent detention and prosecution.

Likewise, Plaintiff does not meet the standard for relation back under Oregon law. Oregon Rules of Civil Procedure 23(C) provides: "Whenever the claim or defense asserted in the amended pleading arose out of the conduct, transaction, or occurrence set forth or attempted to be set forth in the original pleading, the amendment relates back to the date of the original pleading." As construed by the Oregon Court of Appeals, "a new claim cannot relate back to an earlier pleading unless there is at least enough of a nexus between the claims for the defendant to have been able to have discerned from the first that the existence of the second was a possibility." *Walters v. Hobbs*, 176 Or. App. 194, 207 (2001) (internal quotation marks omitted). Plaintiff's original complaint did not provide Defendants with the ability to discern the existence of the claims raised in the Amended Complaints. Plaintiff's original complaint did not allege facts concerning the other alleged incidents in the Amended Complaints; instead,

the Amended Complaints brought an extensive number of new, unrelated factual allegations and claims.

e. Equitable Tolling Not Applicable

Acknowledging his violation of the statute of limitations, without legal authority, Plaintiff has provided "notice" and sought "guidance" concerning his request for equitable tolling of the statute of limitations. ECF No. 14, pp. 2, 8; ECF No. 21, pp. 11-13. Plaintiff's request for tolling should be rejected by this Court because there is no precedent for applying equitable tolling under Oregon law.

Actions brought under Section 1983 follow the forum state's tolling rules. *Hagen v. Williams*, No. 6:14-cv-00165, 2014 WL 6893708, at *4 (D. Or. Dec. 4, 2014). There is no Oregon precedent applying equitable tolling in Section 1983 claims, and the Oregon District Court has not actually applied it. *Id*. Even if there was legal precedent, there is no evidence showing Plaintiff could not have filed his lawsuit in federal court before the statute of limitations expired. As demonstrated by Plaintiff's filing of a duplicative complaint in Oregon state court, Plaintiff was able to file his lawsuit in time; he simply chose to file his action in Oregon state court. Lillegren Decl., Ex. 1; *Lee v. Los Angeles*, 250 F.3d 668, 688-89 (9th Cir. 2001) (noting that in the consideration of a motion to dismiss, "a court may take judicial notice of matters of public record").

3. Failure to Comply with Court Order

Without deciding whether Plaintiff's original complaint here violated the statute of limitations or constituted a repetitive action, the Court's Order allowed Plaintiff to amend his claims against Clackamas County, the Clackamas County Police Department, and John Doe Officers 1 and 2 within 30 days. ECF No. 12, p. 2.

Plaintiff violated the Court's Order by filing amended complaints that identified new defendants: West Linn Police Department, West Linn Police Department Officer Dana Gunnarson, West Linn Police Department Officer Catlin Blyth, Clackamas County Sheriff's Department, Clackamas County Jail, and Deputy District Attorney Rebecca Portlock. ECF No. 13 at pp. 11-15; ECF No. 17-1 at pp. 49-74. Plaintiff lacked authority from this Court to name additional defendants in this action.

Further, Plaintiff filed his FAC too late. The Court's Order dated August 7, 2024, provided Plaintiff with 30 days (until September 6, 2024) to file an amended complaint. ECF No. 12. Without obtaining leave from the Court, Plaintiff filed his FAC on September 9, 2024. Plaintiff's FAC should be stricken as untimely.

Moreover, the FAC and SAC fails to relate to the general subject matter of the original complaint, his alleged arrest from May 24, 2022; instead, the FAC and SAC, each exceeding 79 pages with exhibits exceeding 1,600 pages, concern "a series of actions beginning in March 2022, involving false arrest, malicious prosecution, unlawful detention, denial of adequate medical care, and various other constitutional violations." ECF Nos. 13, 15, 17-1. Plaintiff lacked authority to bring entirely new claims concerning other incidents beyond what Plaintiff alleged in his original complaint.

4. Failure to State a Claim: CCSO Not a Proper Entity

Plaintiff's original complaint attempted to bring claims against the Clackamas County Police Department. The Court recommended dismissal of such claims because police departments are not proper defendants. ECF No. 9, pp. 5-6; *Mecautea v. Oregon*, No. 3:19-cv-01864-MO, 2020 WL 1812012, at *2 (D. Or. Apr. 9, 2020). In the Amended Complaints, Plaintiff has not alleged how the Clackamas County Police

Department, Clackamas County Sheriff's Office, or Clackamas County Sheriff's Department are proper legal entities subject to suit as defendants in his claims under Section 1983. As explained by this Court in *Mecautea*, county departments or offices are not persons subject to Section 1983 claims. The Clackamas County Jail, Clackamas County Sheriff's Office, and Clackamas County Police Department should be dismissed.

5. Failure to State a Claim: 14th Amendment Due Process

The Amended Complaints fail to state a claim under the Due Process Clause of the Fourteenth Amendment. ECF No. 13, pp. 70-71; ECF No. 17-1, pp. 68-69. "[U]nauthorized intentional deprivation of property by a state employee does not constitute a violation of the procedural requirements of the Due Process Clause of the Fourteenth Amendment if a meaningful post-deprivation remedy for the loss is available." *Hudson v. Palmer*, 468 U.S. 517, 533 (1984).

As explained in Magistrate Judge Beckerman's Findings and Recommendation, Plaintiff's original complaint failed to allege why his claim under the Due Process Clause of the Fourteenth Amendment was properly stated when a meaningful post-deprivation remedy for the loss was available, specifically, a state tort action. ECF No. 9, pp. 6-8. This court and "[o]ther courts in this district have concluded that the [Oregon Tort Claims Act] is an adequate post-deprivation remedy for claims of unauthorized, intentional deprivations of property." *Rodriguez v. Cain*, No. 2:19-cv-00087-AR, 2024 WL 1016058, at *4 (D. Or. Mar. 8, 2024).

The FAC and SAC fail for the same reasons as the original complaint. Plaintiff has an adequate post-deprivation remedy, specifically, the ability to bring a claim under

the Oregon Tort Claims Act. Moreover, the FAC and SAC fail to include any allegation that Clackamas County deputies deprived Plaintiff of his property pursuant to a policy or that "the state could have anticipated the [deputies'] actions." *Id.;* ECF No. 13, pp. 70-71; ECF No. 17-1, pp. 68-69. The Amended Complaints should be dismissed.

6. Failure to State a Claim: Section 1983 Claims

The FAC and SAC fail to state a claim upon which relief can be granted under Section 1983. As this Court previously concluded, Plaintiff's original complaint failed to allege a Section 1983 claim because Plaintiff failed to allege "what acts, or failure to act, defendants took that resulted in the alleged rights violation." ECF No. 9, p. 8; *Calderon v. Covello*, No. 2:23-cv-1974 DB P, 2023 WL 7168471, at *3 (E.D. Cal. Oct. 31, 2023). As an example, to the extent Plaintiff's original complaint alleged that Plaintiff was "re-arrested on the same charges, violating his rights and subjecting him to double jeopardy," he did not allege sufficient facts to support a claim that he was prosecuted twice for the same offense. ECF No. 9, p. 8; *Grant v. State of Or.*, No. 3:21-cv-01588-SB, 2022 WL 2910015, at *6 (D. Or. June 15, 2022). Plaintiff's FAC failed to include allegations clarifying or supplementing plaintiff's use of the term "double jeopardy," and his SAC omitted the term "double jeopardy" entirely. ECF No. 13, p. 22, ¶54; ECF No. 17-1. Moreover, Plaintiff's Amended Complaints fail to articulate his claims against Clackamas County specific to medical care and his purported denial of prescription contact lenses or eyewear. While Plaintiff references "cruel and unusual punishment" and vaguely asserts a 42 U.S.C. § 1983 Civil Rights claim of deliberate indifference to a serious medical, he fails to allege necessary facts or identify any defendant involved to support his claim.

Plaintiff's remaining claims against Clackamas County (Fifth, Sixth, Seventh, Ninth, Tenth) fail because Plaintiff has not provided any factual allegations that plausibly give rise to a viable *Monell* claim. Such a claim requires:

> (1) that [the plaintiff] possessed a constitutional right of which he was deprived; (2) that the municipality had a policy [practice, or custom]; (3) that this policy [practice, or custom] amounts to deliberate indifference to the plaintiff's constitutional right; and, (4) that the policy [practice, or custom] is the moving force behind the constitutional violation.

Dougherty v. City of Covina, 654 F.3d 892, 900 (9th Cir. 2011), (quoting *Plumeau v. Sch. Dist. No. 40 Cnty. of Yamhill*, 130 F.3d 432, 438 (9th Cir. 1997)).

A *Monell* plaintiff must also show that the policy or custom in question is so "persistent and widespread" that it constitutes a "permanent and well settled" practice. *Monell v. Dep't of Soc. Servs. of City of New York*, 436 U.S. 658, 691 (1978) (quoting *Adickes v. S.H. Kress & Co.*, 398 U.S. 144, 167-68 (1970)). "Liability for improper custom may not be predicated on isolated or sporadic incidents; it must be founded upon practices of sufficient duration, frequency and consistency that the conduct has become a traditional method of carrying out policy." *Trevino v. Gates*, 99 F.3d 911, 918 (9th Cir. 1996); *see also Thompson v. City of Los Angeles*, 885 F.2d 1439, 1444 (9th Cir. 1989); *Meehan v. Cnty. of Los Angeles*, 856 F.2d 102 (9th Cir. 1988) (proof of two unconstitutional assaults not sufficient to establish custom). Even assuming the Amended Complaints allege some specific unconstitutional act of a Clackamas County employee, municipalities are not vicariously liable for such conduct. *Monell*, 436 U.S. at 691. A municipality may be held liable only when "execution of a government's policy or custom . . . inflicts the injury." *Id*. at 694.

There are no allegations regarding any Clackamas County policy constituting a "longstanding practice or custom which constitutes the standard operating procedure." *Price v. Sery*, 513 F.3d 962, 966 (9th Cir. 2008). The allegations in the Amended Complaints are as a matter of law insufficient to survive a motion to dismiss. *See, e.g., Anakin v. Contra Costa Reg'l Med. Ctr.*, No. 16-cv-00161-MEJ, 2016 WL 2893257, at *4 (N.D. Cal. May 18, 2016) (Section 1983 plaintiff must identify "specific policies or customs" in complaint); *Roy v. Contra Costa Cnty.*, No. 15-cv-02672-TEH, 2016 WL 54119, at *4 (N.D. Cal. Jan. 5, 2016) (plaintiffs in federal courts bear burden of "identifying specific policies" to plead *Monell* claims); *see also Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009); *Cuviello v. City and Cnty. of S.F.*, 940 F. Supp. 2d. 1071, 1090 (N.D. Cal. 2013) (conclusory allegations of city "policy and/or custom" insufficient to establish *Monell* liability); *Dougherty v. City of Covina*, 654 F.3d 892, 900-01 (9th Cir. 2011) (affirming dismissal where complaint "lacked any factual allegations...demonstrating that constitutional deprivation was the result of a custom or practice or that the custom or practice was the 'moving force' behind constitutional deprivation"). Regarding medical care, at best, Plaintiff alleges irregularities in his medical care and treatment at the Clackamas County Jail surrounding a request for contact lenses or prescription eyeglasses, but neither alleges nor references any unconstitutional Clackamas County medical policy or practice. Plaintiff further fails to state, and this Court is unable to infer, that some Clackamas County medical policy or custom was the "moving force [behind] the constitutional violation." *See City of Canton v. Harris*, 489 U.S. 378, 389 (1989) (quoting *Monell*, 436 U.S. at 694). Indeed, Plaintiff has not pleaded facts that touch on any of the four *Monell* elements.

Accordingly, Plaintiff fails to state, and this Court is unable to infer, that any Clackamas County policy or custom was the "moving force [behind] the constitutional violation." *Id.* In the absence of such allegations, plaintiff's claims against Clackamas County must be dismissed because there are no grounds for municipal liability set forth in the Amended Complaints.

7. Failure to State a Claim: Oregon Tort Claims Act

Plaintiff's purported claim for intentional interference with contractual relations should be dismissed for failing to plead timely notice under the Oregon Tort Claims Act. Or. Rev. Stat. § 30.275; *Wilson v. Dep't of Hum. Servs.*, No. 3:20-cv-1819-JR, 2021 WL 6618288, at *2-3 (D. Or. Nov. 4, 2021); ECF No. 13, pp. 42-44; ECF No. 17-1, pp. 62-63. Plaintiff's original complaint and the Amended Complaints each fail to include these required allegations of timely notice.[2] *Id*. For a second time, the Court should dismiss Plaintiff's state law claims for failing to plead timely notice under the Oregon Tort Claims Act. ECF No. 9, p. 9; ECF No. 12, p. 2.

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[2] Plaintiff's April 30, 2025, email to counsel for County Defendants asserts that only federal Section 1983 and "common-law tort causes of action" have been asserted in the SAC. Accordingly, the Court should also dismiss this claim because the federal common law was abolished long ago by the United State Supreme Court. *Erie R. Co. v. Tompkins*, 304 U.S. 64, 78 (1938).

CONCLUSION

For all of the foregoing reasons, County Defendants ask this Court to dismiss each and every one of Plaintiff's claims because Plaintiff has improperly attempted to remove his state court action to this Court, and has failed to state a claim upon which relief can be granted. Therefore, the proper result is dismissal.

Respectfully submitted this 1st day of May 2025.

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CERTIFICATE OF COMPLIANCE

This brief complies with the applicable word-count limitation under LR 7-2(b) because it contains 5,529 words, including headings, footnotes, and quotations, but excluding the caption, table of contents, table of cases and authorities, signature block, exhibits, and any certificates of counsel.

Dated this 1st day of May 2025.

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CERTIFICATE OF SERVICE

I hereby certify that on this date I filed the foregoing COUNTY DEFENDANTS' MOTION TO DISMISS FIRST AND SECOND AMENDED COMPLAINTS with the court's electronic filing system, which will serve copies on all counsels of record, and plaintiff who is a registered user of the court's electronic filing system.

Dated this 1st day of May 2025.

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